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2

REMOTE OCCUPATION

IN HIS *TREATISE OF HUMAN NATURE*, in the section entitled “Of the Rules which Determine Property,” David Hume recites a story originating in Plutarch’s *Moralia: Greek Questions* concerning the occupation of a colony. Here is the story as it appears in Plutarch.

30. WHAT IS THE “BEACH OF ARAENUS” IN THRACE?

When the Andrians and Chalcidians sailed to Thrace to settle there, they jointly seized the city of Sanê, which was betrayed to them; but when they learned that the barbarians had abandoned Acanthus, they sent out two scouts. When these were approaching the city, they perceived that the enemy had all fled; so the Chalcidian ran forward to take possession of the city for Chalcis, but the Andrian, since he could not cover the distance so rapidly as his rival, hurled his spear, and when it was firmly implanted in the city gates, he called out in a loud voice that by his spear the city had been taken into prior possession for the children of the Andrians. As a result of this a dispute arose, and, without going to war, they agreed to make use of Erythraeans, Samians, and Parians as arbitrators concerning the whole matter. But when the Erythraeans and the Samians

gave their vote in favour of the Andrians, and the Parians in favour of the Chalcidians, the Andrians, in the neighbourhood of this place, made a solemn vow against the Parians that they would never give a woman in marriage to the Parians nor take one from them. And for this reason they called the place the Beach of Araenus, although it had formerly been named the Serpent's Beach.¹

Hume cites the story because at his time of writing it was a classic example used by natural law theorists to discuss the ways in which it is possible to occupy a thing (either moveable or immoveable) and claim it as property. The legal conception of occupation was important because of the way these European theories of property were used to justify and conceptualize the process of colonization. At stake in the story from Plutarch are crucial questions for any colonialist thought: whether it is possible to occupy territory without being physically present on it and, a concurrent question, what it means to be physically present on or in a territory. Hume's characteristic answer, which largely breaks with previous interpretations of this story and standard elaborations of the law of occupation, is that questions of property can only be judged by the imagination. He means by this that the physical act is not as important as the force with which it strikes our imaginations. If we feel that the spear in the gate constitutes an intentional and appropriate act of occupation, then we give the colony to the spear thrower. As Hume puts it, it was only because of fancy (or imagination) in the first place that the two men ran "to the gates rather than the walls, or any other part of the city."² We imagine the gates as a metonym for the city, and thus for taking ownership of it. The gates have no more material relation to propriety than any other part of the city, but the men ran to the gates because they "satisfy the fancy best in taking them for the whole."³ Further, Hume says, neither the spear in the gate nor setting foot in a city is "properly possession" but merely forming a relation, and the relative forces of those different kinds of relations can only be determined by the imagination.

Hume's answer to this problem is idiosyncratic, and throughout this chapter I will look at other, more standard and canonical responses to this story and how they relate to conceptualizations of colonialism. However, Hume outlines the problem of Enlightenment thinking about occupation, especially colonial occupation, very well. The precise issue is that all

forms of occupation—and the kind of colonial occupation characteristic of the Enlightenment period perhaps merely gives us the key to understanding this—are more or less remote. Indeed, colonialism is at once a grab for territory and a deterritorialization of the concept of territorial occupation. At the same time that European colonialism was occupying more and more territory, it was also making the conceptual grounds upon which territory—any territory, including that at home—was held or occupied more and more uncertain. In this sense, any theory or practice of remote occupation is inherently colonialist, and the more remote occupation is, the more distant and prosthetic the government or occupation of a territory, the more scope there is for colonial exploitation. The Enlightenment saw huge developments in both the theory and the practice of remote occupation, and it is the Enlightenment's fraught conceptual discussions of occupation that this chapter focuses on. While Enlightenment thought set out to legitimize occupation (and often this meant limiting its extent), the theory of remote occupation that remained virtual within Enlightenment thought promises an occupation unlimited by any natural relation of body to thing. It is this virtuality of the Enlightenment theory of occupation that the drone makes actual. Furthermore, the practice of drone warfare expands occupation beyond the limits imaginable in the Enlightenment by making it possible to occupy not just airspace but an airspace that is not directly above one's own territory. It literally deterritorializes occupation, not only making it possible to occupy the air but separating aerial occupation from territorial occupation. Thus, the drone makes it possible to police populations, to have jurisdiction over people, without having a terrestrial presence. This possibility opens the way for a new level of sovereignty available only to those nations capable of maintaining the networks necessary for drone warfare, an aerial sovereignty that would be more hyperbolically sovereign than the territorial sovereignty to which other nations are bound. The possibility of aerial sovereignty opens up a new asymmetry in international relations.

In our contemporary world, the drone is thus the latest, most distant, most prosthetic of the technologies of occupation. Part of the claim of this chapter is that the problem of remote occupation has become a new and insistent problem in the wake of the global war on terror. As Gregoire Chamayou has argued, the old paradigm whereby, for a military empire,

“‘projecting power’ meant sending in troops” is an “equation that now has to be dismantled.”⁴ As a response to this neoimperial world, a nearly hegemonic critical consensus has arisen that sees the current era as one of deterritorialization and globalization in which national entities and borders are no longer as important as nonstate actors, from terrorists who represent no particular country to multinational corporations that move wealth across borders without regard for national affiliation.⁵ However, as Stuart Elden has argued, this seeming deterritorialization has been subject to various reterritorializations that have reinstated or reinforced the importance of national borders and national sovereignty. As Elden explains, in the war on terror certain nation-states have been held responsible for the actions of those within their borders, whether or not those actions have been supported or sanctioned by the state. The importance of the nation-state is thus maintained to facilitate the declaration of war against certain territories, while the very value of the internal sovereignty of those territories is diminished.⁶

In a different way, the various walls between national borders (the existing wall between Israel and Palestine and the partly fantasized one between the United States and Mexico) have reinstated the firmness of the line between countries, especially when it comes to the movement of people. However, even this attempt to draw stark national borders begins to break down when we consider the myriad refugee camps at borders around the world. It is further stretched in cases such as that of Australia’s use of the small island nation of Nauru to detain and process people seeking asylum in Australia, a policy mirrored in current proposals to have people seeking asylum in the United States remain in Mexico during the processing of their claims.⁷ In both cases, territorial sovereignty is desperately maintained only by creating pockets of people subject to no certain jurisdiction of rights but to a very clear application of the force of national sovereignty. A sovereign right to detain people in camps, especially in the case of Australia, is extended beyond the borders of the nation in such a way that we see a radical expansion of the sovereign power of some nations rather than a diminution of national sovereignty in favor of a deterritorialized globalism. This also illustrates Etienne Balibar’s claim that national borders work to reinforce international divisions of class even as they uphold the idea of equality among citizens of a particular nation.⁸ Territory, and

the right and manner in which it is occupied, thus matters even in a globalized and deterritorialized world.

That is why it is worth looking at the Enlightenment, in which the occupation of territory in a rapidly expanding colonialism interacted with a deterritorialization of the rights of occupation that influenced how occupation was conceptualized not just in a colonial context but in general. The debates about occupying territory in Enlightenment natural law, which I exemplify in this chapter by looking at Hugo Grotius, Samuel Pufendorf, Jean Barbeyrac, and Hume, are ways of stabilizing the law of occupation in the face of the deterritorialization of the practice of colonialism. The Enlightenment, despite the pressures of deterritorialization, never quite produced an explicit theory of remote occupation, a form of occupation detached from the connection between body and territory. Instead, drone warfare is the practical leap that produces remote occupation materially and demonstrates retroactively that it was toward an account of a remote occupation that would expand a sovereign right without jeopardizing national borders that Enlightenment natural law was working. Drone warfare, further, makes the almost unimaginable leap of expanding sovereignty over airspace without requiring boots on the ground below, thus detaching sovereignty and occupation from their terrestrial underpinnings. It creates a new asymmetry between states who can occupy the air and those who remain terrestrially bound.

DRONE OCCUPATION

If we take seriously Hume's claims about the importance of the fancy, or imagination, in determining both the right of occupation and the way we think about whether territory is occupied, it is easy to see why occupation is generally associated with "boots on the ground." Just as it was the messenger whose boots landed on the ground of the abandoned city who was generally thought in Enlightenment natural law (though not in Plutarch's story) to have the more successful claim to territory, a physical military presence seems, in the popular imagination, to constitute the necessary minimum to say that a territory is occupied. This military presence may or may not be linked to a political or administrative apparatus. Indeed,

the debate in 2014 over the necessity of immunity for US troops in Iraq shows that it is quite possible for a military presence to act with sovereignty over life and death within a foreign territory even if that territory is nominally self-governing.⁹ Examples of this abound, including not only the occupations of Afghanistan and Iraq but also US operations in Latin America, such as the antidrug offensive in Colombia. Iraq in this sense—and the same would go for Afghanistan—is occupied by the United States as long as US troops have immunity to exercise power over life and death, even if Iraq is not governed or administered directly or even indirectly by the United States. This requires a rethinking of the concept of occupation so that it aligns more closely with the exercise of a sovereign right over life and death than it does with mere physical presence. While this link between a power over life and death and physical presence may have seemed natural and inevitable before, the drone demonstrates that these were always different things; when we speak of occupation now, we must not merely speak of presence. Furthermore, as Chamayou has shown, the drone as a weapon is precisely designed to give immunity, not only legally (in the sense that the United States remains invulnerable from legal consequences for drone use in states with which it is not even officially at war) but also from enemy reprisals.¹⁰ In this sense, the drone is an instantiation of sovereign immunity, a right and power to kill without check, hovering in skies that can only be occupied by a sovereign force. It is a technology of remote occupation that joins together the two sovereign functions of the right over life and death and immunity.

This right and power to kill without check, the sovereignty of the drone, is most obvious in what Hugh Gusterson calls “*pure drone warfare*.”¹¹ This is the kind of drone warfare that is not mixed with other military operations, such as those in Afghanistan and Iraq, in which US forces have boots on the ground, there is an official declaration of war, and drones are one part of a multipronged military presence. Instead, pure drone warfare refers to the US use of drones in a territory with which it is not officially at war and in which there is no other, or almost no other, form of military presence. As Gusterson puts it, this is warfare that happens “outside the legal framework that applies to an internationally recognized warzone.”¹² Gusterson’s distinction is useful, although we must be careful not to overstate the conventionality or legality of various wars that did not or do not

involve drones. Nor can we forget (as Gusterson reminds us) that while drones can fly remotely, they need to be maintained, launched, and landed much more locally, and this means that there are often boots on the ground very near to, sometimes even within, the very territories that drones patrol during “pure” drone warfare. Bearing this in mind means paying attention to the way drones radically alter the practice of warfare but also remembering that we must ourselves remain skeptical of both conventional and hegemonic accounts of the legality of war and also the claims of drones to be entirely remote.

Despite these reservations about the purity of “pure drone warfare,” it is nevertheless possible to follow Gusterson and locate the clearest examples of this kind of drone warfare in the US operations in Pakistan and Yemen.¹³ These operations are characterized by their paramilitary form, in that they are largely orchestrated by the CIA rather than by regular military; by their extrajudicial status, in that they are carried out in territories with which the United States is not officially at war and based on ambiguous and secret agreements between the United States and foreign governments; and by their strategic form, in that they aim to assassinate particular people, rather than defeat a nation or government. Furthermore, they are the most remote of drone operations in the sense that without an official US presence in the territory, and sometimes without very much of an unofficial one, these operations are carried out seemingly without any occupation of territory at all.

Pakistan and Yemen provide clear examples of this kind of drone occupation. The CIA’s drone operations in Pakistan began in June 2014 with an attack on one Nek Mohammed. With varying levels of cooperation between the US government and the Pakistani government, they have continued for the best part of a decade. In Yemen, there was one drone attack on an Al-Qaeda leader named Qa’id Salim Sinan al-Hirathi in 2002.¹⁴ After that, there was a long hiatus before drone operations started up again in Yemen in 2010. There too, cooperation between the government and the United States was both secret and ambiguous, with the Yemenis sometimes taking responsibility for US drone attacks and at other times condemning the US operations.¹⁵ Either way, the remote warfare carried out by paramilitarily operated drones seriously compromises the sovereignty of the territories involved and gives the United States a right of life and death over

the citizens or residents of foreign territories and a right of (ir)responsible action in foreign territories.

This right of life and death is sovereign in more ways than one. On the one hand, it is carried out without oversight on people who have no defense, either legally or politically and, because of the asymmetry characteristic of drone warfare, barely even militarily. On the other hand, especially since the strikes are secret and largely carried out by the CIA, the American people have little say in how the drone wars are conducted. In other words, the US government is sovereign in this instance because it is not accountable either for the lives it takes or to the people in whose name it takes them.¹⁶ In both these senses, even without any boots on the ground, any territory regularly subject to drone strikes must be said to be subject to the sovereignty of the nation controlling the drones. This is remote occupation. The practice of drone warfare by Western states has invented the remote occupation that Enlightenment theorists almost conceptualized. Its technology makes the task of sovereign occupation possible without any physical presence, without a contact between boots and the ground. It is an actualization of what remained latent but virtual, lurking but unrevealed, in Enlightenment thought.

It is in this sense that airpower, and of course the drone, stretches the argument that occupation involves boots on the ground beyond the bounds of the Humean imagination. While it is easy to imagine occupation happening through boots on the ground, and thus easy to imagine that Iraq and Afghanistan, as well as Palestine, are occupied territories, it is harder to imagine occupation (rather than merely control) happening from the air. Indeed, in discussing the Israeli occupation of Palestine, Eyal Weizman notes that for the Israeli establishment the withdrawal of Israeli troops after 2005 constituted an end to occupation, but not to control. The removal of boots on the ground supposedly led to a regime of “technology instead of occupation.”¹⁷ However, it is precisely the claim that not having boots on the ground means an end to occupation that the technology of the drone upends. While Iraq, Afghanistan, and Palestine seem as if they are or might be occupied territories, Yemen and Pakistan (especially Waziristan) are less often thought of or referred to as such. Chamayou, for instance, in describing an early scientific imagination of drone technology in which a robot would be used to perform tasks in a “hostile zone” writes that this zone

“may . . . be exploited for its resources, but it is not, strictly speaking, to be occupied. One intervenes there and patrols it, but there is no suggestion of going to live there.”¹⁸ It is this question of what, strictly speaking, can be said to be occupied that I want to use Enlightenment natural law to answer. Far from finding there an orthodox definition of occupation against which the drone must be measured, we find instead strained debates that try, unsuccessfully, to make occupation less remote and more connected to living bodies. In Enlightenment accounts of occupation there was never a clear and orthodox claim that occupying a space meant going to live there. What the practice of remote occupation in drone warfare demonstrates to us is that it was, in fact, always remote occupation that Enlightenment natural law was theorizing. This means that the theory and practice of occupation was both always uncertain, prosthetic, and precarious and, at the same time, potentially unlimited and imperial. Strictly speaking, occupation is always already remote.

OCCUPATION IN NATURAL LAW

The natural law account of occupation is about how property is originally acquired and what it means to own something. As Wolfram Schmidgen has argued, the capacity of natural law to ask these questions in the context of the rapid acquisition of colonial territories in the seventeenth and eighteenth centuries led to a resurgence of concern with it in England.¹⁹ The common law, which assumed that all land had always been occupied, left less room for colonialists to argue for the vacancy of land in the New World than did natural law accounts of occupation. While in colonial contexts the theory of occupation was often applied to lands or territory, this was not the case in the texts of natural law theorists such as Grotius and Pufendorf. In their work, occupation can refer as much to moveable things as it can to immoveable ones such as land, so that many of their examples of occupation treat the question of what it is to possess things (including wild animals) as well as what it is to occupy land. This application of the same kind of reasoning to things and to land has to do with the derivation of natural law from Roman civil law. Elden argues that the “Romans made a distinction between land and other kinds of property, but this was not

especially significant.” He says that “the law on property applied to both kinds of things; the differences are matters of detail.”²⁰ Andrew Fitzmaurice too argues that the “distinction between land and goods was not as important in Roman law as it would be in modern European law.”²¹ For this reason, it is not surprising that natural law texts focus as much on moveable things as they do on immoveables such as land, even if questions of land become much more important in modern natural law.

In the colonial context, however, there is a potentially significant difference between territory and things. As we will see, Grotius especially aims to distinguish between occupying land and having jurisdiction over it, a distinction that would make little sense with regard to things. In Grotius’s view, this distinction with regard to land could make it possible to have jurisdiction over something without occupying it (as when a land within the borders of a political community is vacant) or to occupy something without having jurisdiction over it (as when one may claim the right to use vacant land in another’s sovereign territory without challenging their political rights).²² This potential unmooring of political jurisdiction from occupation is certainly not unchallenged in the natural law tradition (Pufendorf disagrees sharply with Grotius over this), but it does demonstrate the potential differences between the occupation of territory and that of things. Furthermore, it allows us to think about what drones can do in an important way. In the context of drone warfare, drones claim and enforce jurisdiction over populations without physical occupation. This remote occupation, enabled by another unmooring, that of airspace from the territory below it, is the novelty of drone warfare.

Occupation is the process or action by which a thing that was not previously subject to a relationship of propriety becomes proper to a person or group. Occupying a thing, an object or a tract of land, involves removing it from what natural law theorists call a state of “negative community,” in which it is available to everyone and the property of no one, and making it proper to either a group or a person.²³ As natural law theorists insist, property is a moral relation between persons, not a relation between a person and a thing. What is produced in private property (either individual or communal), then, is a right to a thing that excludes other people from it. The central question concerning theories of occupation is thus what kind of action needs to be performed in order to produce this exclusive

right and what context needs to be in place to make this action successful, or felicitous.²⁴

In natural law attempts to define such an action several difficulties occur. In the first place, although propriety is a moral relation between people, it does to some extent involve a thing, in particular the proximity to and power over a thing. In this sense, the natural law theory of occupation sometimes becomes as much an account of bodies and touch (questions of physicality) as an account of intention or will (questions of state of mind). Secondly, even when making property is a matter of will or intention, regardless of the physical relation between person and thing, there arises a problem of signification and what constitutes an adequate sign of the will to occupy something. In this sense, the action of occupation is necessarily linguistic and involves a series of signs, either verbal or physical, natural or conventional, that need to be comprehended by others. Even the internal, mental, or intentional side of thinking occupation is thus related to the physical world of signs and signification. Thirdly, whether an account of touch and the power of bodies or an account of the power of the will and verbal signification, the action of occupation involves, for many thinkers, some relation to convention, whether tacit, implied, or explicit, that must determine whether or not an action is successful (or felicitous). In order to explore these problems, and their various aporias, I will look at two quite different accounts of occupation. Grotius and Pufendorf have a conventionalist theory of occupation that relies, to a large extent, on a kind of corporeal intuitionism, by which the proximity of bodies to things ultimately performs propriety. On the other hand, Jean Barbeyrac, who edited and translated those thinkers into French and whose extensive notes were included in most eighteenth-century English editions of their work, has a strongly intentionalist theory of occupation in which only the will to occupy is necessary to produce the moral relation of property. In the tension between these two irresolvable approaches to occupation there opens up the possibility, even the necessity, of a remote occupation that is not entirely limited by intention, convention, or the proximity of a body to a thing.

For the most part, theories of occupation in the Enlightenment are concerned with original occupation, or how a thing came to be property in the first place, and then with the various rights and duties associated with

propriety. While the occupation of land was a matter already largely governed by positive laws (although there are some exceptions, to which I will return), there were various tricky cases concerning the occupation of moveables, especially animals. Animals were often important test cases in natural law. Both wild and tame animals were subject to ownership, and natural law theorists thought carefully about what kinds of animals could become property and under what conditions. For Pufendorf, for instance, bees, despite being the object of labor, were wild animals that might decamp to another person's property at any time, and the original owner of the hive would have no redress.²⁵ Game, a particularly sensitive topic, was also given careful consideration, and questions about a boar wounded by an arrow on one property but finally touched and killed on another produced long debates about propriety.²⁶

When it comes to immoveables, such as land, Pufendorf and Grotius had divergent views about the extent and permanence of occupation. These arguments had profound consequences for the prosecution of European imperialism. As Fitzmaurice has argued, the natural law theory of property "provided a powerful justification of expansion."²⁷ Indeed, it was in the colonial context that theories of occupation were most pressing, as territory (especially in the Americas) was not occupied under the norms of European positive law. This meant that any right to occupy that territory was, for European thinkers, a matter of debate within natural law. Richard Tuck has outlined one particular aspect of this debate that had important consequences for how Europeans thought about the right of imperial expansion: the right to occupy uncultivated (or "under"-cultivated) lands. Tuck argues that for Grotius there was "a distinction between property and jurisdiction" when it came to taking possession of "waste lands." Local (indigenous) authorities were thought to have jurisdiction over these lands, but there was a "general natural right to possess any waste land."²⁸ Because the right to possess waste land was natural, according to Tuck's account of Grotius, any local political authority that would refuse a right to possession of the land would violate a law of nature and thus be (under Grotius's terms) punishable by any power. This kind of jurisdictional sovereignty is thus weak and provides no bulwark against occupation. Occupation is a natural right that overrules any form of sovereign jurisdiction over un- or "under"-cultivated lands.

Pufendorf, meanwhile, disagreed with this. He argued that there was no distinction between jurisdiction and property and thus, in Tuck's words, "the waste lands in a territory occupied by a people are owned by the people collectively."²⁹ Acquiring jurisdiction is the same thing as occupying territory. In this sense, Pufendorf's stronger concept of jurisdictional sovereignty (or of sovereignty as such) mitigates against the colonial occupation of territory. The deterritorialization of sovereignty (the literal splitting off of the concept of sovereignty or jurisdiction over people from the occupation of the land) was thus a way to open space for colonial occupation.³⁰ In the context of drone warfare, this same splitting of jurisdiction and physical occupation of land has different consequences. The technology of the killer drone allows not only a weakening of jurisdiction of those on the ground but an expansion of the powers of life and death beyond the borders of territorial sovereignty. This aerial sovereignty allows a policing of populations without terrestrial contact, and with a minimum of vulnerability for the policing power.

Looking at the debate about occupation in natural law is important because it is clear that this seemingly arcane discussion has direct consequences for the legal ideology of colonialism. When Grotius and Pufendorf interpret the story from Plutarch with which this chapter started, they are elaborating principles that still have consequences for the law of property, especially when it comes to considering the extent and permanence of a right to occupation. Furthermore, it is precisely the limiting of jurisdictional sovereignty by granting a foreign, remote power the immunity to decide over life and death that makes the remote occupation characteristic of the drone possible. This is an Enlightenment version of Elden's claim that the contemporary world is producing conditional forms of national sovereignty in which some states are assumed to have jurisdiction over their territorial borders even while they are held responsible for elements of their populations that they cannot or do not control. This makes them subject to intervention by other sovereign powers, a condition or limit to their sovereignty, even as their jurisdictional right over their territory is supposedly not challenged.

PLUTARCH'S SPEAR AND THE HELLFIRE MISSILE

We should return now to Plutarch's story about remote occupation by spear. Importantly, both Grotius and Pufendorf present Plutarch's story not as a text to be interpreted (as does Hume) but as a source of authority like a legal precedent. It is not only a story about how to occupy unoccupied territory but also an authoritative instance of the rules of occupation. This story is not just an example but a precedent that gives the law. Grotius and Pufendorf take credit, or invoke as a form of credit Plutarch's authority, which decides in advance the stakes of the question and the answer to it. For his part, Grotius focuses not just on finding a thing or even on signifying that one has found it but on actually laying hold of it. He thus says (seemingly contrary at least to the majority decision in Plutarch's text) that the deserted city is "adjudged to the *Chalcidians*, who first enter'd it, not to the *Andrians* who had first thrown a dart into it." His reasoning has to do with appropriate forms of touch and contact. He writes that "the beginning of Possession is joining Body to Body, and this in Moveables is done usually by the Hands; but in Immoveables, by our Feet."³¹ These modes of bodily action are clearly codified for Grotius, but how this convention came to be in force is not explained. The appropriate forms of contact are a kind of propriety preceding property and are presumably the result of a strangely detailed, yet silent and tacit contract regarding the forms of appropriation. Indeed, to some extent, it seems to be Plutarch's story itself that is supposed to determine the appropriateness or propriety of forms of action (even if Grotius seems to disagree with the majority decision in the story).

Pufendorf's commentary on this passage is similarly aimed at proving that possession "commenceth at our joining Body to Body, either immediately or by a proper Instrument."³² For immoveables, "immediate" occupation is necessary. This immediacy, however, is far from simple. While Pufendorf seems to indicate that immediacy here has to do with a contact of the body without prosthetic mediation, this contact must also be mediated by its context, by the supposed and implicit agreement about the appropriateness of different forms of contact between body and thing. The focus on immediacy means that Pufendorf, like Grotius, insists on a certain propriety between bodies and things: "The regular Course therefore is, that the Occupancy of Moveables be made with the Hands;

the Occupancy of Soil with Feet, with an intention of manuring it, and the Action of setting Boundaries to it” (391). This rules out the action of spear throwing as appropriate in the case of the deserted city. He writes that “whether Possession of an immoveable Thing may be taken by an Instrument, we may understand from the famous Story” in Plutarch (391). After reciting the story, Pufendorf concludes that “a Spear seems a very improper Instrument for the Occupancy of Immoveables, since we can strike many things with such a Weapon, which we can never approach so near as to touch with our Body” (391). His solution thus depends on an immediate touch, unmediated by any prosthetic instrument, even if this touch must always be mediated by a convention that will decide how and when touch is possible and legitimate. Importantly, occupation is here defined quite literally by boots on the ground: we occupy land by stepping on it with our feet.³³ However, as with Grotius, the rule that dictates that we touch something immediately is itself already mediated by a prior convention. In this sense, even immediate occupation and immediate touch are remote, mediated by a convention prior to any act of occupation whatsoever. In their attempts to naturalize occupation by linking it immediately to the natural body, both Grotius and Pufendorf thus produce an aporia in which the more naturally connected to the body the moment of occupation is, the more it is necessary that an anterior convention guarantee this natural connection of body and territory. Mediation inserts itself into physical immediacy. The drone, as a technology that hyperbolizes mediation (between drone operators, their machines, and their targets; between those who order killings and those who press the button), acts as a lever to break apart the already shaky immediate and direct connection between body and territory in Enlightenment theories of occupation.

Paradoxically, then, Pufendorf (and, implicitly, Grotius) relies on an immediacy of touch at one and the same time that he refers back to a necessary convention that would always mediate every act of touch. On the one hand, there is an insensible convention that bypasses intentionality and mediates any form of touch and contact; on the other hand, there is an immediate moment of contact that is supposed to produce the meaning of an action by itself. This paradox becomes clear in Pufendorf’s engagement with Lambert von Velthuisen, a Dutch apologist for Hobbes, over the relationship between sight and touch in occupation. He quotes at length

from a passage in which Velthuysen defends the necessity of an original contract in order to establish property. Part of this quotation includes an example of two men running to occupy something, which echoes the problem concerning the seizure of things that arises in Plutarch's story of the Greek colony. Pufendorf quotes Velthuysen: "*There is in Nature no more Reason why Men should desire a Right from the first Occupancy of Things, than from the first Discovery of them with the Eye. Therefore the difference must arise from the Institution of Men, ordaining, that the Right to a Piece of Land, for instance, should be in him who first took possession of it, not in him who saw it before others.*" Velthuysen continues: "*Let us suppose two Men, one swift, and one slow of Foot, 'tis evident what an ill-match'd Couple we have here, as to the business of acquiring property; and by consequence, that the Right by which he who first seizeth the thing, in this case, should be the true owner of it, is not borrowed from Nature, but from implicit Covenant or Agreement*" (366, italics in original). For Velthuysen, the necessity of corporeal possession and the privilege of touch over sight with regard to property are conventional and not natural. There is thus no natural fitness of body to thing that makes property out of the application of one sensory organ to a thing and not another, and we could not, without a preceding convention, communicate our design to occupy a thing to others by means of any kind of physical action.

Pufendorf comments that Velthuysen "might have said more briefly, upon Supposition that all Men had originally an equal power over things, we cannot apprehend how a bare corporal Act, such as Seizure is, should be able to prejudice the Right and Power of others, unless their Consent be added to confirm it" (367). For Pufendorf, then, the way the body interacts with things in order to produce propriety is entirely conventional. More than a bare corporeal act, the act of seizure is an act of signification, an act that requires context and convention. Pufendorf does little to explain, however, how it is, or what possible reason might be behind, the specificity of the convention that makes touch more important than sight. The closeness of the body and the necessity of touch, indeed the entire idea that there must be boots on the ground to produce occupancy, seems to be based upon little more than an invisible antecedent convention. This convention is remote from the body, and even remote from those subjects who are attempting to occupy something as they have no choice but to simply

accept its terms. This means that the act of occupation is never immediate, no matter how hard Grotius and Pufendorf try to make immediate contact the condition of occupying something. The convention always mediates between the fact of touch and a felicitous act of occupation. Pufendorf and Grotius, in their interpretation of Plutarch's problem, thus shuttle between the necessity of a prior conventionality that would guarantee the efficacy of an act of occupation and the necessity of an instant of touch that would produce property immediately. Occupation is a mediated immediacy in which the necessary act of touch is always distanced from itself. Occupation is thus always more or less remote, always proximate, but never immediate, and when tele-technologies that extend the virtuality of touch beyond the range of a thrown spear intervene, the distance from which one can occupy something and the complexities of distinguishing the remote from the immediate only increase.

This is especially the case when the drone—a weaponized eye, as Chamayou calls it—makes seeing something and being able to strike it simultaneous. In this prosthetic technology, remote touch and farsightedness combine in a deadly form. However, this does point to a difference between the drone, which destroys people and things with Hellfire missiles, and Plutarch's spear, which is used not so much as an offensive weapon and more as a mode of signification. If the spear in Plutarch's story signifies an intention to occupy or performs occupation, however, so does the Hellfire missile. Exactly because of its limited destructiveness and its claims to precision, the missile fired from a drone signifies a power of jurisdiction or sovereignty at the same time that it kills and destroys. The weaponized drone is able to police populations by exercising the power of life and death, needing to touch the ground only with violent explosions. Occupation is so remote that one barely needs even the land itself except as a target, as the air is sufficient to maintain a jurisdiction over those on the ground. If both weapons signify or perform occupation, though, there is also a decided difference in the way they relate to temporality. The spear in the gate is a punctual sign, made once and without need of repetition. The missile fired from a drone, however, is part of a potentially infinite series of strikes, and every missile signifies a power or potential for more strikes as much as it does a singular claim to occupation. This signifying of the continued potential for destruction, however, makes the Hellfire missile a powerful

signifier of occupation. One could hardly imagine, to speak like Hume, a clearer signal of sovereign jurisdiction than a missile that can kill with (ir)responsibility and immunity.

BARBEYRAC: REMOTE INTENTIONALISM

Some of the problems associated with thinking through the remoteness of occupation become clear in Jean Barbeyrac's responses to Pufendorf and Grotius. Barbeyrac translated the works of both authors into French, and his editions (which sometimes reordered the Latin) were the basis for many English editions. Beyond translating, Barbeyrac also appended long discursive and explanatory notes to his translations, many of which took serious issue with the authors he was translating. Indeed, these notes were often more disputative than explanatory, and this is especially the case when it comes to questions of original occupation. Unlike both Pufendorf and Grotius, Barbeyrac was staunchly against the idea that there needed to be a prior contract or convention in order to establish property. This latter position he saw as Hobbesian and therefore dangerously authoritarian. As a Huguenot exile living within memory of the Revocation of the Edict of Nantes, Barbeyrac was especially wary of any arguments that enhanced the power and authority of sitting sovereigns. Indeed, as David Saunders has demonstrated, much of Barbeyrac's work moved toward translating the natural law of Pufendorf and Grotius into a Lockean register and thus eliminating the need for a contract to establish property.³⁴ Much of this disagreement comes out clearly in Barbeyrac's commentary on the passages of Pufendorf and Grotius I have discussed above, and in this commentary Barbeyrac also develops, as Sophie Bisset has shown, a strongly intentionalist, or will-based, theory of occupation that extends the potentiality of remote occupation far beyond the still physical theories of Grotius and Pufendorf.³⁵

It is hard to overstate the strength of Barbeyrac's objections to the idea that a convention is necessary to establish property. When Pufendorf writes that the exclusion of others from a thing can only proceed from a "mutual agreement," Barbeyrac inserts a very long note that simply begins "No, in no wise" (365n4).³⁶ What follows in this note contains much of

Barbeyrac's theory of the origin of property, and it cleaves very closely to Locke, whom he references specifically. Barbeyrac argues that "first possession" conveys an "immediate right" of property, without the mediation of an agreement. He writes that it is clearly the intention of God, who is the "Donor" of all things to men, that "those who come first shall gain a personal Right to those things that they have gotten, exclusive of the Pretensions of all others, without any Consent of theirs needful to be given." It is merely "taking possession" that "hath in it an effectual Virtue" to make something property (365n4). For Barbeyrac, this virtue, or power of possessing something, carries with it a series of rights and obligations necessary to property. For example, when Pufendorf claims that a supposed or implied agreement is necessary to oblige someone to return property to its rightful owner, Barbeyrac claims that this obligation to restore another's goods is "as natural a consequence of property as it is not to take them" and thus requires no agreement (454n1). Barbeyrac aims to establish a natural right to things that proceeds directly from God's donation and does not require the intervention of a contract, and it is clear that he sees lurking behind the "agreements" of Grotius and Pufendorf the kind of contract with sovereign power theorized by Hobbes. Possession or occupation itself, then, is an action that is sufficient to make something into property, and no agreement or convention is necessary. However, for Barbeyrac, possession and occupation, despite their connotations of bodily contact, become something incorporeal and insensible.

Barbeyrac's commentary on Pufendorf's discussion of the difference between seeing and seizing something demonstrates the way convention and contact, mediacy and immediacy, combine in Pufendorf's account of property. To Pufendorf's argument that (without a compact to make touch capable of making property) seizure no more than seeing something conveys a right to property, Barbeyrac comments that the distinction between sight and touch has nothing to do with a prior agreement or consent. It proceeds instead, he argues, from the natural difference between these two actions. Seizing something, for Barbeyrac, can convey property because he who seizes something "declares thereby his intention . . . to appropriate it to himself" (366n6). Seizing reveals or signifies an intention. On the other hand, "The meer sight of thing can't have the same Effect, because we see many things without any design of taking them to ourselves only" (366n2). Barbeyrac, while rejecting a corporeal and conventionalist theory

of occupation, does so by instituting a natural body language in which certain actions can immediately make known our intentions. Barbeyrac thus maintains the distinction between sight and touch but does so by making touch not a conventionally agreed upon mode of producing property but a signifying, constative act. One judges the act of touch not by what it does or performs but by whether it adequately signifies the truth of an intention. Indeed, he claims that “if at the same time we perceive a thing first, and we discover any ways an intention of reserving it to ourselves, others may no more pretend to it, than if we were actually seized of it” (366n6). Barbeyrac thus makes the acquisition of property a matter of communication and signification of intentions. For Barbeyrac, occupation is about true signification, not felicitous performance.

Before moving on, it is worth noting that the claim that we can see something without having an intention to occupy it makes more sense when we talk about unassisted human sight (if there is such a thing) than when we talk about the kind of machinic vision that is the hallmark of the drone.³⁷ Humans indeed see many things without having any intention at all about them or, crucially, without even noticing them. We can thus see something in our field of vision without necessarily attending to it, let alone developing specific intentions about it. The drone, however, records everything in its field of vision (beyond even those things visible to the human eye). It provides an archive of things that may at any time be noticed or attended to. Furthermore, this archiving means that the drone has a kind of vision, a surveillance, that implies some kind of intentionality, as opaque as that intentionality might be. It does not merely see but claims a kind of control over what it sees either through the possibility of returning to archived recordings or, especially, because at any moment that vision can be turned into an act of violent and destructive touch. The drone sees intentionally, and its vision implies a right and power to prosthetically touch, and destroy, whatever it sees. In this sense, while Barbeyrac’s intentionalist theory seems to make the mode of occupation retreat into the mind of the human subject, the drone is a technology of prosthetic intentionalism, able to claim something by merely seeing it because its sight implies in itself, and without any other act of signification needed, an intention and power to occupy.

To return to Barbeyrac, he argues that taking corporeal possession is only “a means to let all others know, that we have an Intention to appropriate such a thing” (386n2). He continues: “Indeed, that which properly

makes the Right of the first Occupier is, that he makes known to others his design to seize upon a thing” (386n2). Occupation for Barbeyrac thus works by signifying intentions and is more a constative than a performative statement. Barbeyrac therefore concludes that “if then [the occupier] declares his will by some other Act [i.e., not corporeal possession], as significative . . . he may then acquire the original Property without any actual possession” (386n2). Here, a prior convention is not required to give force to an act. Instead, it is the meaning of the action or speech, and the intention it signifies, that is important. This is what the drone, as a technology of prosthetic intentionalism, would call seriously into question. No other act is needed beyond sight and the accompanying threat of immediate destruction to occupy something. For its part, though, while Barbeyrac’s intentionalism aims to avoid the temporal problem of the prior convention in favor of a present, nonprosthetic intention, it also means that no touch, no boots on the ground, is necessary to make occupation happen. In this sense, Barbeyrac establishes a theory of incorporeal or remote occupation, which, when added to the prosthetic intentionalism of the drone, makes occupation almost unlimited and hyperbolically extensive.

Indeed, if occupation can be achieved by verbal signification, one’s distance from a thing is immaterial. In making occupation entirely about communication between people, Barbeyrac loses all relation of proximity to a thing. He certainly realizes that this could lead to the possibility that one could simply claim property in everything one sees with no power, or perhaps even no serious intention, to use it. The problem of actually physically having or seizing an object that one claims to occupy emerges here. He thus adds a clause to his claim. He writes that in order to combat “the boundless Covetousness of most Men,” one “must be inclined to take what he declares his design to seize upon” (386n2). There must be an inclination that goes beyond the signified intention to claim something as property. However, the drone, which records what it sees, reserves the right of intention about what it sees. Any present sight can always be returned to, and the right to have an intention about what it sees is thus held in reserve, like a prosthetic and proleptic intentionalism. Occupation as a right, for Barbeyrac, remains problematic precisely because it is remote, or at a distance from the thing to be occupied, and it is this remoteness that the drone, as a technology of remote intentionalism, takes advantage of.

In a sense, there is in Barbeyrac's intentionalist system of occupation an unbridgeable difference between the occupier and the thing occupied. If there is original propriety, it is only in intention, not in the connection to the thing. Between the intention and the bodily connection to the thing, there remains a series of supplements and vagaries of interpretation. By retaining the pristine originality of intention, Barbeyrac paradoxically opens the propriety of occupation far beyond the kinds of physical limits that the more corporeal accounts of Pufendorf and Grotius set to it. The political technology of the drone expands those possibilities even further. The untouchability of intention replaces the insensible convention we saw in those thinkers, but the remote occupation allowed by Barbeyrac opens up the possibility for a more extensive and unlimited form of propriety, for a form of occupation that can happen at a distance, through intention, and without boots on the ground.

Given this, it is unsurprising that Barbeyrac disagrees forcefully with the interpretation of Plutarch's problem he found in Grotius and Pufendorf. It is precisely the idea that there is a prior convention and that there is a power in immediate touch that he takes issue with. He writes of Pufendorf that the "Determination . . . of our Author, is not at all Satisfactory" (391n2). In line with his will-based theory of occupation, he claims that "when two Persons at the same time declare their Intention to seize a thing that belongs to neither of them, the thing is common to both" (391n2). Barbeyrac writes that what produces propriety is the fact that one "has declared, before some others, some way or another, his Intention to make a thing his own" (391n2). The clause "some way or another" grants considerably more liberty in how to occupy something than does the rather strict relation of a type of thing to a type of action or a part of the body that is drawn by Grotius and Pufendorf. This is both because, for Barbeyrac, there is no previous propriety of relation guaranteed by a tacit agreement and because it is not the signs that matter so much as the intention that is merely indicated by the sign. If Barbeyrac is able to adjudge occupancy equally to the spear thrower and the messenger who first stepped on the territory to be occupied, he demonstrates the potential of natural law to think occupation beyond the limits of the physical body. He outlines a form of sovereign, colonial occupation that would not need physical presence but merely a signified intention. The consequences of Barbeyrac's theory become clearer

in the world of drone warfare. Insofar as drones extend the sensors of the body, allowing their pilots and their masters to signify an intention of occupation by exercising the sovereign right over life and death, drones are able to produce a remote occupation that extends far beyond the limits of the corporeal body. The killing, with immunity, of civilians—or even merely the surveillance of civilians and of territory accompanied by a power to kill—is, in this sense, just as much a declaration of an intention to occupy as a standard declaration of war. In this policing of populations we see jurisdiction or sovereignty split off from boots on the ground occupation. This form of remote occupation, furthermore, is explicitly enabled by an asymmetrical aerial sovereignty in which sovereignty is not limited to the airspace immediately above one's terrestrial dominions.

OCCUPATION AND THE ELEMENTS

To say that the drone allows a kind of remote occupation is, as we have seen, to stretch the limits of what we mean by occupation in terms of a physical presence in a territory. The drone thus hyperbolizes and actualizes the concept of remote occupation that was already virtually present within Enlightenment concepts of occupation. However, this claim that drones allow for a remote occupation of the places in which they are active also challenges theories of occupation in a different way. Occupation has always been thought to be solely limited to the land. Indeed, it is precisely this territorial quality of occupation that lends such intuitive or imaginative force to the idea that a foot must strike the ground to be occupied. In many ways, the origin of Enlightenment natural law is precisely the idea that the open seas cannot be occupied. Grotius's *Mare Liberum* (1609) set forth as its thesis that no country can occupy the oceans and that all nations have an equal right to traverse them. While not unchallenged, Grotius's argument became orthodoxy and was subject to several refinements.³⁸ One such refinement was Bynkershoek's 1702 claim that the sea could be occupied as far as one could defend it from land.³⁹ Thus a harbor, the entrance to which could be covered by cannon shot, could be claimed by a particular nation. Even during the eighteenth century this accepted refinement was subject to the general problem of the increasing range of weapons resulting from

technological advances. Clearly, the drone blows all such calculations out of the water, and indeed long before the advent of the drone the formal limit of three miles from a coastline became the established limit for the occupation of the sea.⁴⁰ A formal rule thus intervened against technology in such a way as to maintain both the freedom of the seas and the conceptual boundary between the elements of land and sea.

One of the most interesting wrinkles in the idea that the sea cannot be occupied is, as Daniel Heller-Roazen has demonstrated in *The Enemy of All*, the existence of the pirate, whose status as a figure not bound to the earthly territory has long been a problem for institutions of law and sovereignty. The pirate, as Heller-Roazen has shown, belongs to an element not subject to earthly sovereignty and thus lives not only in unoccupied territory but in an element that cannot be occupied. The technology of the drone presents a similar problem to that of the pirate, but with regard to a third element: the air. While the pirate seems outside all territorial law, not bound to the occupied territories of the earth and imperfectly subject to the sovereignty of nations, the weaponized drone of Western militarism is a figure of sovereign power that, in its airborne state, is equally indifferent to the laws of territory. However, while the sea cannot be occupied, the way the law of the air developed means that the air is subject to sovereign occupation, although usually this occupation refers only to the occupation of the airspace above a sovereign territory by the nation that has sovereignty over the land. What the drone makes possible is a splitting off of the air from the ground below it and the potential for an aerial sovereignty exercised without any kind of boots on the ground. On a fundamental level, what the drone demonstrates is that the air is the exclusive province of sovereign power, that it can be occupied only by the most advanced and technologically capable sovereign powers. It threatens, indeed, a new division of sovereignties, between the limited sovereignty (which is thus not sovereignty at all) of telluric nations and the unlimited sovereignty of those nations that can claim control of airspace beyond their own territorial boundaries.

Before looking at the way Heller-Roazen discusses the figure of the pirate as it relates to the history of the law of the sea, it is worth looking at how the laws governing airspace developed in relation to technologies of flight. Once long-distance flight became a real possibility, various legal obstacles

to the burgeoning practice of aviation became clear. As Stuart Banner has chronicled in *Who Owns the Sky?*, one of those problems was the question of aerial trespass over private property. Because the common law and the civil law both held that the owner of a property owned the airspace all the way to the heavens, an aircraft's right to fly through the airspace over private property was ambiguous at best. While Banner's book follows the various twists and turns that led to the overcoming of this obstacle in the United States, it also touches on a question more germane to my argument: are the skies sovereign? More fundamental than the question of private property rights in airspace was whether sovereign nations had the right to exclude foreign aircraft from their airspace. Unsurprisingly, jurists looked backward for analogues to this new legal situation and found one in the debate about sovereignty over the seas. As Banner argues, it appeared that the sea and the air could be analogical and that if the law had enshrined a freedom of movement over the seas, it might do the same with regard to movement through the air.⁴¹

The question of aerial sovereignty was important both because of questions of what is now called national security and because of questions of jurisdiction. As Banner reports, lawyers questioned, for instance, what the citizenship would be of a child born while airborne or what nation would have jurisdiction over a murder committed in the air. Would it be the nation of which the alleged murderer was a citizen? Or was the victim's nationality more important? Or was the crucial factor the territory over which the plane was flying when the crime was committed, the nation where the flight had originated, or the nation where the plane landed?⁴² These are questions, especially with regard to crimes, that had already been debated with regard to the law of the sea, and maritime law thus seemed a fruitful place to start when thinking about constructing a law of the air. However, while the debate about the law of the sea had been decided in favor of the free seas by the beginning of the eighteenth century, the debate concerning the law of the air in the early twentieth century quickly moved the other way. Some of this debate had to do with the law of occupation. As Banner explains, the French jurist Paul Fauchille claimed that in order to own something, "one must be able to occupy it in a real and continuous manner," and he denied that this was possible in the case of the air.⁴³ Flying through the air was not the same as occupying it.

Others, however, argued that nations could occupy their airspace precisely because they would have a capacity to exclude others from it. This claim of exclusive right is another facet of the natural law of property. Indeed, in the early twentieth century Johanna Lycklanna and Harold Hazeltine outlined what would become the standard legal doctrine of the sovereign right to airspace. One is occupying something, each of them argued, if one can keep others from it. Furthermore, these jurists argued, states had the right to exclude airships from their airspace in order to protect their citizens. Even a friendly airship could crash, and while this is true of oceangoing vessels as well, a sinking ship poses little threat except to the people and things on board.⁴⁴ Thus the analogy between sea and air began to be broken. Then, as Banner tells it, the outbreak and prosecution of World War I “removed all doubt that nations would need to exercise complete sovereignty over their territories,” and the “neo-Grotian claim, that the air by its nature could not be possessed, virtually disappeared.”⁴⁵ Very soon, the principle that national sovereignty extended up into the sky was enshrined in international law. This means that the drones that hover in the air above countries with which the United States is not at war are in a very different legal situation than the pirates who roam the seas. On the one hand, in both cases the legal situation is often unclear, especially when drones are used for extrajudicial killing. On the other hand, while pirates exist in a zone seemingly outside sovereignty, drones embody a mobile or remote sovereignty that decidedly unbalances the system of territorial sovereignty in a way that airplanes, which mostly pass through airspace, do not. Drones hover above territory as little islands of sovereign immunity.

Indeed, drones contribute to and exacerbate what Stuart Elden has identified as a tiered system of sovereignty. Elden argues that some states, in line with the United Nations definition of sovereignty as territorial, are treated as sovereign nations, even when most international actors recognize, or claim, that these nations are not fully in control of their peoples or territories. The principle of inviolate borders is thus maintained, but these nations are treated as if not fully sovereign over their territories, at once responsible for the actions of their people and deemed unable to control their people without external help.⁴⁶ Afghanistan and Iraq are examples of this form of sovereignty, but perhaps the clearest recent example is that of Pakistan, whose control of the Federally Administered Tribal Areas, or FATA, has

always been in question. The control of airspace becomes crucial in these situations, and the drone allows a remote control or occupation of the airspace above an otherwise sovereign earthly territory that markedly reduces the territorial sovereignty of a nation. As remote islands of sovereign power, drones occupy the airspace and unbalance the system of territorial sovereignty that was supposed to be enshrined in UN charters. While territorial sovereignty is undoubtedly one legacy of the Enlightenment, so is the drone and its remote occupation. We must be alert to the fact that the drone is not simply an undoing of the territorial basis of sovereignty but also a way of maintaining sovereign borders, even when the rights of sovereignty (such as that over the life and death of one's subjects) are exercised remotely by another power. As Elden has shown, the deterritorialization of borders has also implied a stark reterritorialization of national sovereignty.

With respect to the significance of the drone's challenge to the system of territorial sovereignty, it is worth looking at how Heller-Roazen describes the relation of the pirate to territory. He traces the figure of the pirate in the law of nature and nations from Cicero's declaration that the pirate is "common the enemy of all."⁴⁷ This figure, whom medieval jurists would call the enemy of humanity, thus exists outside the bounds of obligations that people in civil society owe to one another. As the pirate is, fundamentally, an oath breaker, one is not obliged to keep oaths to pirates. The pirate thus exists in a zone of (ir)responsibility, similar to that of the sovereign. He cannot be held responsible for his deeds by any particular system of laws, as his actions exist outside the reciprocal obligations that make a society of laws function. For this reason, as Heller-Roazen explains, the pirate can be punished by anyone, as he is an enemy to all humanity.⁴⁸ While a sovereign power is not as easily punished as a pirate, he (or she or it) is also not subject to specific civil laws, and any punishment would have to come either from a fragile international law or through a rebellion of subjects. In this sense, the sovereign and the pirate are mirror images, one existing in a zone of (ir)responsibility below the level of civil society, the other above it.

The parallel or mirror image is reinforced in thinking about the elements that are "occupied" by these figures. As we have seen, natural law holds as one of its principles that the sea cannot be occupied. The sea has always been, both in law and in the imagination, the proper element of the pirate. Indeed, as Heller-Roazen has argued, one of the major principles

of law concerning pirates is that they commit their depredations at sea. Their ships are thus outside any national legal jurisdiction and therefore, as Heller-Roazen explains, not subject, under international law, to any jurisdiction whatsoever.⁴⁹ Carl Schmitt, for instance, in attempting to distinguish the pirate from the partisan, argues that the partisan remains “telluric,” or earthbound, while the pirate has no territorial ties.⁵⁰ This linkage of the pirate to the sea was strained in various ways throughout the twentieth century.⁵¹ Heller-Roazen argues that the US war on terror has produced, in the category of the “unlawful enemy combatant,” a new telluric figure of piracy. As he puts it, this new figure of enmity collapses “the distinction between criminal and political categories,” and the actions taken against him “involve the measures used in prosecuting both belligerents and criminals: procedures both of external relations and internal security, measures of politics and police.”⁵² Heller-Roazen is writing specifically about the rounding up and imprisonment, particularly in Guantanamo Bay, of people classified as “unlawful enemy combatants” in the immediate aftermath of the US invasion of Afghanistan. Certainly, the more recent move from a policy of capture to one of killing would only heighten the link that Heller-Roazen draws between the pirate and the new figure of the unlawful enemy combatant, who, like their predecessor, is treated as an enemy of all, or an enemy of the human race. As I argued in the first chapter, the enemy in drone warfare is treated as incapable of becoming a friend, and the only options considered are indefinite detention and death.

However, while Heller-Roazen’s analysis focuses on the creation of this new form of subjectivity, who is not quite a political subject nor a criminal subject, it is also worth focusing on the new form of sovereignty that is capable of hunting it down. If the unlawful enemy combatant has no particular reference to a territorial state even as they live on the land, the drone occupies the air only because it belongs definitely to an earthbound sovereign power. If the sea is classically free, not occupied and thus the potential realm of pirates, the drone makes the air the element of sovereignty. Caren Kaplan has recently revised in a convincing manner the historical narrative that links aeriality to sovereignty and state power, demonstrating that aerial viewpoints can be as much about confusion as about control and that there are other aesthetic potentials in the aerial view than that of the state.⁵³ In the case of the drone as a military weapon, however, sovereignty

remains key.⁵⁴ While drones themselves are relatively cheap in comparison with standard fighter and bomber planes (at least the Predator and Reaper models) and thus presumably reasonably accessible to nonstate actors or to the military apparatuses of smaller states, the infrastructure that makes a drone like the Predator or Reaper functional is not. Not only are hi-tech bases at remote locations necessary but the airfields where drones take off and land need to be manned because a three-second delay in video feeds means that remote pilots cannot perform those tasks. This is not to mention the huge amount of bandwidth necessary to transmit all the information generated by the drone's sensors. Most importantly, though, to be functional as a military weapon the drone requires an almost total dominance of airspace. Because even the most basic of antiaircraft artillery or the most ageing air force would make short work of a drone, the drone is functional as a weapon only because of a sovereign dominance of airspace. The drone is a weapon of asymmetrical warfare.

Thus, the drone is a flying figure of sovereignty, of an occupation of airspace that can be accomplished only by a sovereign power. If the sovereign and the pirate come together, it is because both act outside the bounds of the territorial, and remote occupation is the mode in which the drone allows sovereignty to do this, to deterritorialize itself from the classical concept of boots-on-the-ground occupation. The drone thus unlinks sovereignty from territoriality. However, as Elden has argued, this deterritorialization (or aerialization) of sovereignty does not leave the earth or territorial boundaries behind. Instead, what is produced is a "contingent sovereignty" whereby the lines on a territorial map remain clear and a given state is responsible for what happens within those lines.⁵⁵ However, the ability of that state to control its own territory is called into question in such a way that other countries are given the right to enter into it and act upon its population.

As Elden puts it, in such cases "territorial integrity is split apart, in that there is a call for the preservation of existing territorial settlements but an insistence on wholly contingent sovereignty. The stress on territorial sovereignty [that a state is responsible for what goes on within its borders] is enforced most strongly at the very time territorial sovereignty is disrupted" by the incursion of foreign forces.⁵⁶ The human result is, Elden argues, that the people within these territories become "victims from both sides,"

from the terrorist groups (or their own governments) and from external forces who increasingly appear only as the explosion of a Hellfire missile. Pakistan is once again an emblematic example. Elden argues that even as early as the US invasion of Afghanistan in 2001, Pakistan was able to avoid becoming subject to an invasion itself only by compromising its sovereignty. Pakistan had to agree to a list of demands articulated by Richard Armitage (then of the US State Department), some of which, like “blanket overflight and landing rights for all military and intelligence operations,” “effectively surrendered Pakistan’s territorial sovereignty.”⁵⁷ With the advent of the drone, of course, these flying islands of sovereignty could more or less constantly and permanently maintain an aerial presence that, without changing the territorial integrity of Pakistan’s borders, eviscerated its sovereignty. This is the very paradigm of remote occupation.

This system of contingent sovereignty returns to the problem of responsibility discussed in chapter 1. States that are subject to this contingent sovereignty are held absolutely responsible for everything that happens within their borders, even when parts of the territory enclosed by those borders are readily acknowledged to be outside any governmental control. Indeed, Elden calls the idea that all states are in control of all their territory a “sovereign fiction,” a state of affairs which never exists and yet which underlies all international law concerning states.⁵⁸ By a robust application of this sovereign fiction, states with contingent sovereignty are thus made subject to a strict liability form of responsibility in which even unwelcome noncitizens who act in their territory are their responsibility. In a circular way, the inability to control one’s own territory renders one’s sovereignty contingent, not immune and absolute, and thus subject to interventions by other sovereign powers.⁵⁹ Elden shows that this has led to a conception of “earned sovereignty,” sovereignty as something that some states have to prove a right to rather than as something absolute and nonnegotiable.

In some ways, this system of contingent sovereignty is a way to limit sovereignty, and it is imperative to limit the absolute right to violence that sovereigns claim. However, the system of contingent sovereignty does this only by placing, as Hobbes demonstrated, another sovereignty above the sovereignty of contingent states. In the case of states accused of harboring terrorists, the other sovereignty is exercised by states such as the United States or Britain, who see themselves as actual or potential

victims of terrorism. Their sovereignty, their right to immunity from attack and their right to life and death, is thus extended radically to the airspace and territories of other nations. Their sovereignty is not, of course, earned, and the question whether they are responsible for the nefarious actions of those within their borders is never raised. What emerges is a reaffirmation of sovereignty that strengthens its immunitary powers and radically extends its reach. It is also a sovereignty that is irresponsible, unaccountable both for the actions that take place in its own territories and for the actions it takes (even up to deciding on life and death) in the territory of others. This is the consequence of remote occupation. What the drone's remote occupation shows is that the crude territorial dominance of Enlightenment colonialism, while brutal and violent, was also limited. It is instead from the not quite explored, not quite recognized theorization of remote occupation by Enlightenment legal thinkers that a more unlimited form of occupation and colonialism emerges. We did not have to wait for the drone for its theorization, but its actualization was definitively allowed by the radically asymmetrical aerial sovereignty characteristic of drone colonialism. The next chapter explores the relation between sovereignty and aeriality, once again beginning with an Enlightenment text—Jonathan Swift's *Gulliver's Travels*—that had already begun to imagine the consequences of aeriality for sovereignty and colonialism.